aff'd, 201 U. S. 43; *Ex parte Chapman*, 153 Fed. Rep. 371.

The principles above set forth have long been upheld by the courts of England. The Fourth and Fifth Amendments merely continued the right which was guaranteed by the common law, a right which has always been jealously guarded when properly claimed. See *King* v. *Dr. Purnell*, 1 W. Blackstone, 37; *Green* v. *Granatelli*, 7 State Trials (N. S.), 979.

The rights guaranteed to every natural person by the Fourth and Fifth Amendments are substantial, not merely formal and technical, and cannot be defeated by any fictional distinction by which the single and indivisable natural person is deemed to act or to be proceeded against in a representative capacity, and not in an individual capacity.

An officer of a corporation who is in possession of a book of the corporation containing a record made under his direction of his own acts and statements and tending to incriminate him, cannot be compelled in a criminal proceeding against himself to produce and permit the inspection of such books (either directly or by being forced to turn the book over to some other officer of the corporation) by means of a subpœna *duces tecum* addressed to the corporation directing the production of the book in question.

A subpœna *duces tecum* is a possessory writ. It searches all books and papers in the possession of the witness at the time of the service of the subpœna and in the eye of the law seizes such as are specified in the subpœna and are then in the possession of the witness. *Bank* v. *Hilliard*, 5 Cowen (N. Y.), 153, 158; *Nelson* v. *United States*, 201 U. S. 92, 115, 116; *Hall* v. *Young*, 37 N. H. 134.

The subpœna *duces tecum* addressed to the corporation only was unauthorized and void. *Hale* v. *Henkel*, 201 U. S. 43; *Wertheim* v. *Continental Trust Co.*, 15 Fed. Rep.